

Amendment No. 1 to SB2589

Jackson

Signature of Sponsor

AMEND Senate Bill No. 2589

House Bill No. 2220*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 4-20-101, is amended by deleting the section and substituting:

(a) There is created a state commission to be known as the Tennessee arts commission, which consists of fifteen (15) members who are broadly representative of all fields of the performing, visual, and literary arts. The members must be citizens of this state who have demonstrated a vital interest in the performing, visual, or literary arts.

(b) The Tennessee arts commission as comprised on June 30, 2026, is vacated on July 1, 2026, and new members are appointed as follows:

(1) The governor shall appoint one (1) person from each of the nine (9) United States congressional districts in this state. The members' residency is determined by the congressional district in which such members are registered to vote;

(2) The speaker of the senate shall appoint one (1) member from each of the three (3) grand divisions of this state; and

(3) The speaker of the house of representatives shall appoint one (1) member from each of the three (3) grand divisions of this state.

SECTION 2. Tennessee Code Annotated, Section 4-20-102, is amended by deleting the section and substituting:

(a) To stagger the terms of the newly appointed commission members, initial appointments must be made as follows:

(1) The governor shall appoint:

(A) Members from the first, second, and third United States congressional districts for initial terms of three (3) years, which expire on June 30, 2029;

(B) Members from the fourth, fifth, and sixth United States congressional districts for initial terms of four (4) years, which expire on June 30, 2030; and

(C) Members from the seventh, eighth, and ninth United States congressional districts for initial terms of five (5) years, which expire on June 30, 2031; and

(2) The speaker of the senate and the speaker of the house of representatives shall each appoint:

(A) One (1) member from the western grand division for an initial term of three (3) years, which expires on June 30, 2029;

(B) One (1) member from the middle grand division for an initial term of four (4) years, which expires on June 30, 2030; and

(C) One (1) member from the eastern grand division for an initial term of five (5) years, which expires on June 30, 2031.

(b) All subsequent appointments to the commission are for five (5) years, and must be made by June 15, begin on July 1, and expire on June 30.

(c) A member of the commission who serves a full five-year term is not eligible for reappointment during a one-year period following the expiration of such member's term. Such prohibition begins at the end of the full five-year term, regardless of whether a member continues to serve as a member of the commission beyond such term in accordance with subsection (e).

(d) All vacancies must be filled for the balance of the unexpired term in the same manner as the original appointments.

(e) Upon the expiration of a member's term of office, the member shall continue to serve until a successor is appointed.

(f)

(1) The members of the commission receive no compensation for their services but must be reimbursed for actual and necessary expenses incurred in the performance of their duties as members of the commission.

(2) All reimbursement for travel expenses must be in accordance with the comprehensive travel regulations as promulgated by the department of finance and administration and approved by the attorney general and reporter.

(g) The commission shall elect a chair and other officers annually.

(h) All administrative rules promulgated by the arts commission and in effect on June 30, 2026, continue to be in effect on and after July 1, 2026, until otherwise amended or repealed in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.